Flowcharts

Breach of Duty – General

General common law principles

- In determining whether a duty of care has been breached, the court measures the defendant's conduct against a standard of care. If the defendant's conduct falls short of this standard, there has been a negligent breach of the duty of care. It makes no difference if the defendant's conduct falls far short or just short of the required standard in establishing breach.
- The duty is only a duty to take reasonable care; it is not an absolute duty to avoid injury, so the measure of care behaviour is reasonableness, not elimination of risk: *Swain v Waverley Municipal Council* (2005) 220 CLR 517, 520[5] Gleeson CJ.
- We are concerned with a reasonable person's response to a foreseeable injury - ie the defendant's conduct is judged against an objective standard. So, a defendant may be in breach of his duty, even though he has done his personal best, if his personal best is not reasonable.
- *Blyth v Birmingham Waterworks Co* [1856] 56 ER 1047 per Anderson - Negligence is the omission to do something which the reasonable man, guided upon those considerations which ordinarily regulate the conduct of human affairs, would do, or doing something which a prudent and reasonable man would not do.

Need to address two particular questions:

1. Was the RISK of injury to the plaintiff reasonably foreseeable? [ie what standard of care does the defendant owe?]

- This is concerned with the degree of foreseeable risk.
- The higher the degree of risk, the less reasonable it will be for the defendant to fail to take steps to prevent it occurring

2. Was the RESPONSE of the defendant to this risk reasonable? [ie has the standard been met?]

- This is concerned with the reasonableness of the defendant's response to the risk.

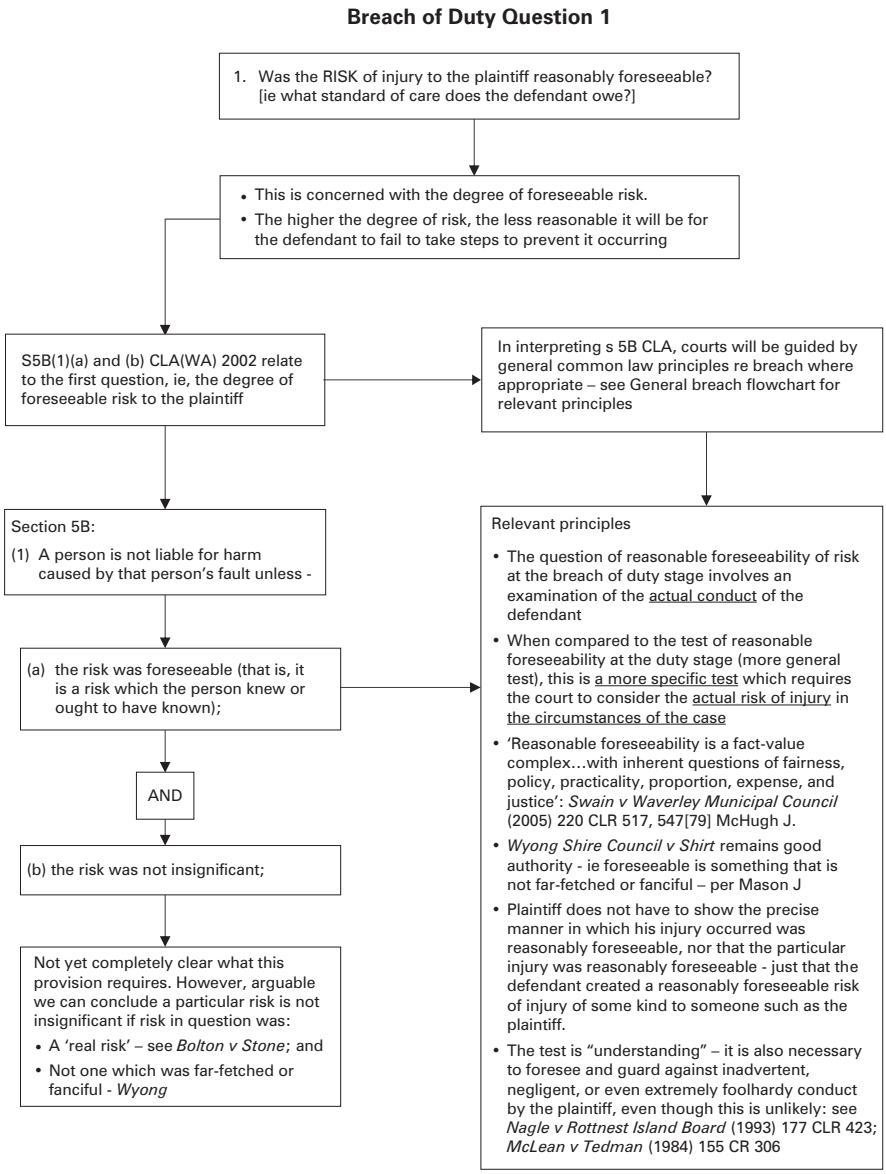
***Civil Liability Act 2002* (WA)**
Section 5B now establishes statutory criteria for breach of duty
(although headed "Duty of Care")

S5B(1)(a) and (b) CLA(WA) 2002 relate to the first question, ie, the degree of foreseeable risk to the plaintiff (see further breach 1 flowchart)

AND

S5B(1)(c) and 2(a)-(d) relate to the second question, ie, whether the defendant's response to the risk in question was reasonable (see further breach 2 flowchart)

Source: Bunn, Allcock, Allison & Shircore, Tort Law Principles (Thomson Reuters, 3rd ed, 2025), pp 381-382. Provided for LAWS2400/LAWS8040 students via iLearn.


Breach of Duty Question 1
1. Was the RISK of injury to the plaintiff reasonably foreseeable? [ie what standard of care does the defendant owe?]
• This is concerned with the degree of foreseeable risk.
• The higher the degree of risk, the less reasonable it will be for the defendant to fail to take steps to prevent it occurring
S5B(1)(a) and (b) CLA(WA) 2002 relate to the first question, ie, the degree of foreseeable risk to the plaintiff
In interpreting s 5B CLA, courts will be guided by general common law principles re breach where appropriate – see General breach flowchart for relevant principles
Section 5B:
(1) A person is not liable for harm caused by that person's fault unless -
(a) the risk was foreseeable (that is, it is a risk which the person knew or ought to have known);
AND
(b) the risk was not insignificant;
Not yet completely clear what this provision requires. However, arguable we can conclude a particular risk is not insignificant if risk in question was:
• A 'real risk' – see *Bolton v Stone*; and
• Not one which was far-fetched or fanciful - *Wyong*
Relevant principles
• The question of reasonable foreseeability of risk at the breach of duty stage involves an examination of the actual conduct of the defendant
• When compared to the test of reasonable foreseeability at the duty stage (more general test), this is a more specific test which requires the court to consider the actual risk of injury in the circumstances of the case
• 'Reasonable foreseeability is a fact-value complex…with inherent questions of fairness, policy, practicality, proportion, expense, and justice': *Swain v Waverley Municipal Council* (2005) 220 CLR 517, 547[79] McHugh J.
• *Wyong Shire Council v Shirt* remains good authority - ie foreseeable is something that is not far-fetched or fanciful – per Mason J
• Plaintiff does not have to show the precise manner in which his injury occurred was reasonably foreseeable, nor that the particular injury was reasonably foreseeable - just that the defendant created a reasonably foreseeable risk of injury of some kind to someone such as the plaintiff.
• The test is "understanding" – it is also necessary to foresee and guard against inadvertent, negligent, or even extremely foolhardy conduct by the plaintiff, even though this is unlikely: see *Nagle v Rottnest Island Board* (1993) 177 CLR 423; *McLean v Tedman* (1984) 155 CR 306